



REQUEST FOR QUOTATION
Contract Opportunities (SAM.gov)
PN: Garlock Safety System 55TA25

HAVE YOU UPDATED YOUR REPRESENTATIONS AND CERTIFICATIONS LATELY ON WWW.SAM.GOV?
IF NOT, BE SURE TO DO SO PRIOR TO CLOSING OF SOLICITATION.

PLEASE COMPLETE THE FOLLOWING INFORMATION:

1. OFFEROR:

Company Name: _____

Address: _____

Name of Company Rep: _____ Title _____

Phone: _____ Fax: _____

Email: _____

UEI Number: _____

Is your company a dealer _____ or manufacturer? _____

Business Size: _____

Please provide pricing for the following NSN. See Terms & Conditions on following pages.

Requirement	Quantity	Requested DARO	Manufacturer and Part Number Quoting	Country of Origin (COO)	Quoted Price (EA) (Discount Requested)	Extended Quoted Price
Garlock Safety System Guard Rail Mounting Bracket / PN 55TA25	160	8			\$	\$
Total Price			\$			

Please let us know if this quote can be used for future orders by completing the valid through date below.

This requirement consists of one order and will be shipping to:
CORONADO, CA 92135.

NOTE: Delivery addresses will either be disclosed at time PO is issued, or the vendor may be required to contact NAVSUP or GSA's New York Transportation Department at time of shipment to obtain shipping information.

2. TERMS OFFERED:

- Delivery shall be **FOB Destination**, CONUS. Yes _____ No _____.
- Extended lead-time and reason (if cannot meet requested DARO): _____.
- Price valid through _____ Minimum Order Threshold (MOT) _____.

3. ADMINISTRATIVE COMPLIANCE:

NOTE: The below requirements marked with an (x) are to be completed and/or acknowledged. If any applicable blanks are not complete, the vendor's quote will NOT be considered for award.

- ☒ Will comply with all terms and conditions of the solicitation. Yes _____
- ☒ Is registered with OMS Vendor Portal or EDI to receive orders electronically. Yes _____.
- ☒ Provided all requested documents by the close date and time of the solicitation to include:

- Pages 1 and 2 of this document: Yes ____
- All required Provision and Clause fill-ins submitted (as applicable):
 - My company is registered with **SAM.gov** and has provided responses to the provisions that require Offeror completion of information, representations, and certifications: Yes ____ No ____.
 - In accordance with Provision 52.240-90(c) (GSA Class Deviation RFO-2025-12), Covered telecommunications equipment or services representations. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and (2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g). Yes ____ No ____.
 - In accordance with Provision 52.240-90(d) (GSA Class Deviation RFO-2025-12), *ASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). Yes ____ No ____.
 - Offeror shall disclose within 72 hours to the contracting officer the information in Provision 52.240-91(h)(1) (GSA Class Deviation RFO-2025-12) for each product or service not compliant (Confirmed ____).
 - Offeror certifies that they will comply with all requirements in Provision 52.240-91 (GSA Class Deviation RFO-2025-12) Security Prohibitions and Exclusions. Yes ____ No ____.

 X Quoted on the brand name item as specified in the attachment: Yes ____.

 X Read, sign, and returned attached MIL-STD-129R Compliance Form IAW Clause 552.211-73: Yes ____
 OR if your company has a completed form on file for the Instaquote program check here: Yes ____ **Only one yes should be selected.**

SELF CERTIFICATION:

By signing below, you are certifying that the information submitted on this form is accurate and meets the requirements listed in the RFQ. In the event your firm ships an item that does not meet the specifications of the requirement, your firm will be responsible for a refund of the payment, or a correct replacement item and any cost incurred by the government.

Signature: _____ Date: _____

4. **BASIS OF AWARD:**

A vendor meeting all administrative compliance requirements in Section 3 above will receive a rating of pass and move forward to the final evaluation factor: Low Price.

If any required documents are not submitted or required field left blank on pages 1 and 2 of this document including the Section 3 questions or if the completion of required clauses and provision fill-ins are not made (as applicable), further consideration for award will not be made.

5. **APPLICABLE TERMS AND CONDITIONS:**

The following is a brief overview of several applicable conditions as they relate to any award placed against this RFQ. All quotes must be submitted via email upon the close date of the RFQ to be considered for award.

Quoter must be registered in the System for Award Management (SAM) database before an award can be made to them. If quoter is not registered in the SAM, they may do so through the SAM website at <http://www.sam.gov>, prior to award.

Description of Agreement:

An all-or-none award will be made. This RFQ may result in an award with the General Services Administration/ Supply Chain Management Contracting Division (GSA/SCM). When a PO is accepted by the seller, it becomes a binding contract between both the buyer and the seller. **Any vendor submitting a quote, must be a registered user and able to accept POs in GSA's Order Management Services (OMS) Vendor Portal or have the ability to receive orders via Electronic Data Interchange (EDI).**

 X This RFQ is set aside exclusively for Small Business IAW FAR 19.201 (GSA Class Deviation RFO-2025-19).* A vendor must have the assigned NAICS size standard (750 employees or less) in their SAM account to be eligible for award.

 This RFQ is not set aside.

 X NAICS assigned 332510: Hardware Manufacturing

*Note: As this acquisition is under the SAT, in accordance with FAR 19.5, the nonmanufacturer rule does not apply and the small business can provide the product of any concern [note that the Buy American Act (FAR [52.225-2](#)) (GSA Class Deviation RFO-2025-25) still applies to this acquisition in accordance with FAR 25.601(a)(1) (GSA Class Deviation RFO-2025-25)].

Extent of Obligation:

This is a Request for Quotations (RFQ), and quotations furnished are not offers. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation, or to contract for supplies or services. Part numbers are being collected for informational purposes only on each technical or generic spec NSN.

PROVISIONS INCORPORATED BY FULL TEXT

52.212-1, Instructions to Offerors—Commercial Products and Commercial Services (NOV 2025) (GSA Class Deviation RFO-2025-12)

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is “late” and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids).* The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror’s initial offer should contain the Offeror’s best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings.* If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency’s evaluation of the significant weak or deficient factors in the debriefed Offeror’s offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

52.212-2 Evaluation—Commercial Products and Commercial Services (NOV 2025) (GSA Class Deviation RFO-2025-12)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

- Administrative Compliance – all quotes will be evaluated against the factors on pages 1 and 2 of the RFQ on a pass/fail basis.
- Technical Acceptability - If the IPD is 'brand name or equal' and the item offered is different than called out in the IPD, technical specifications must be submitted on the manufacturer's part number being quoted so an 'or equal' determination can be made. Determinations will be on pass/fail basis.
- Price - the lowest evaluated price

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

APPLICABLE PROVISIONS INCORPORATED BY REFERENCE (GSA Class Deviation RFO-2025-12)

- ☐ [52.203-11](#) Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions
- ☒ [52.203-18](#) Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation
- ☒ [52.204-7](#) System for Award Management—Registration
- ☐ [52.204-7](#) System for Award Management—Registration, with Alternate I
- ☐ [52.204-90](#) Offeror Identification
- ☐ [52.207-6](#) Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts)
- ☐ [52.209-12](#) Certification Regarding Tax Matters
- ☐ [52.219-2](#) Equal Low Bids
- ☒ [52.222-18](#) Certification Regarding Knowledge of Child Labor for Listed End Products
- ☐ [52.222-48](#) Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification
- ☐ [52.222-52](#) Exemption from Application of the Service Contract Labor Standards for Certain Services-Certification
- ☐ [52.222-56](#) Certification Regarding Trafficking in Persons Compliance Plan
- ☐ [52.223-4](#) Recovered Material Certification
- ☒ [52.225-2](#) Buy American Certificate
- ☐ [52.225-4](#) Buy American-Free Trade Agreements-Israeli Trade Act Certificate
- ☐ [52.225-6](#) Trade Agreements-Certificate
- ☐ [52.225-20](#) Prohibition on Conducting Restricted Business Operations in Sudan-Certification
- ☐ [52.225-25](#) Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications
- ☐ [52.226-3](#) Disaster or Emergency Area Representation
- ☐ [52.229-11](#) Tax on Certain Foreign Procurements—Notice and Representation
- ☒ [52.240-90](#) Security Prohibitions and Exclusions Representations and Certifications

APPLICABLE CLAUSES INCORPORATED BY REFERENCE (GSA Class Deviation RFO-2025-12)

☐ [52.203-6](#) Restrictions on Subcontractor Sales to the Government Alt I
☐ [52.203-13](#) Contractor Code of Business Ethics and Conduct
☒ [52.203-17](#) Contractor Employee Whistleblower Rights
☐ [52.203-19](#) Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements
☐ [52.204-9](#) Personal Identity Verification of Contractor Personnel
☒ [52.204-13](#) System for Award Management—Maintenance
☐ [52.204-91](#) Contractor identification
☐ [52.209-6](#) Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment
☐ [52.209-9](#) Updates of Publicly Available Information Regarding Responsibility Matters
☐ [52.209-10](#) Prohibition on Contracting with Inverted Domestic Corporations
☐ [52.219-4](#) Notice of Price Evaluation Preference for HUBZone Small Business Concerns
☒ [52.219-6](#) Notice of Total Small Business Set-Aside
☐ [52.219-6](#) Notice of Total Small Business Set-Aside, with Alternate I
☐ [52.219-8](#) Utilization of Small Business Concerns
☐ [52.219-9](#) Small Business Subcontracting Plan
☐ [52.219-14](#) Limitations on Subcontracting
☐ [52.219-16](#) Liquidated Damages—Subcontracting Plan
☐ [52.219-33](#) Nonmanufacturer Rule
☒ [52.222-3](#) Convict Labor
☒ [52.222-19](#) Child Labor—Cooperation with Authorities and Remedies
☐ [52.222-35](#) Equal Opportunity for Veterans
☐ [52.222-35](#) Equal Opportunity for Veterans, with Alternate I
☒ [52.222-36](#) Equal Opportunity for Workers with Disabilities
☐ [52.222-36](#) Equal Opportunity for Workers with Disabilities, with Alternate I
☐ [52.222-37](#) Employment Reports on Veterans
☒ [52.222-40](#) Notification of Employee Rights Under the National Labor Relations Act
☐ [52.222-41](#) Service Contract Labor Standards
☐ [52.222-42](#) Statement of Equivalent Rates for Federal Hires
☐ [52.222-43](#) Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts)
☐ [52.222-44](#) Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment
☒ [52.222-50](#) Combating Trafficking in Persons
☐ [52.222-50](#) Combating Trafficking in Persons, with its Alternate I
☐ [52.222-51](#) Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements
☐ [52.222-53](#) Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements
☐ [52.222-54](#) Employment Eligibility Verification
☐ [52.222-62](#) Paid Sick Leave Under Executive Order 13706
☐ [52.223-9](#) Estimate of Percentage of Recovered Material Content for EPA-Designated Items
☐ [52.223-9](#) Estimate of Percentage of Recovered Material Content for EPA-Designated Items, with Alternate I
☐ [52.223-11](#) Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons
☐ [52.223-12](#) Maintenance
☐ [52.223-20](#) Aerosols
☐ [52.223-21](#) Foams
☐ [52.223-23](#) Sustainable Products and Services
☐ [52.224-3](#) Privacy Training
☐ [52.224-3](#) Privacy Training, with Alternate I
☒ [52.225-1](#) Buy American-Supplies
☐ [52.225-1](#) Buy American-Supplies, with Alternate I
☐ [52.225-3](#) Buy American-Free Trade Agreements-Israeli Trade Act
☐ [52.225-3](#) Buy American-Free Trade Agreements-Israeli Trade Act, with Alternate II
☐ [52.225-3](#) Buy American-Free Trade Agreements-Israeli Trade Act, with Alternate III
☐ [52.225-3](#) Buy American-Free Trade Agreements-Israeli Trade Act, with Alternate IV
☐ [52.225-5](#) Trade Agreements

- ☐ [52.225-19](#) Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States
- ☐ [52.225-26](#) Contractors Performing Private Security Functions Outside the United States
- ☐ [52.226-4](#) Notice of Disaster or Emergency Area Set-Aside
- ☐ [52.226-5](#) Restrictions on Subcontracting Outside Disaster or Emergency Area
- X [52.226-8](#) Encouraging Contractor Policies to Ban Text Messaging While Driving
- ☐ [52.229-12](#) Tax on Certain Foreign Procurements
- ☐ [52.232-29](#) Terms for Financing of Commercial Products and Commercial Services
- ☐ [52.232-30](#) Installment Payments of Commercial Products and Commercial Services
- X [52.232-33](#) Payment by Electronic Funds Transfer—System for Award Management
- ☐ [52.232-34](#) Payment by Electronic Funds Transfer—Other than System for Award Management
- ☐ [52.232-36](#) Payment by Third Party
- X [52.232-40](#) Providing Accelerated Payments to Small Business Subcontractors
- ☐ [52.232-90](#) Fast Payment Procedure
- X [52.233-3](#) Protest After Award
- X [52.233-4](#) Applicable Law for Breach of Contract Claim
- X [52.240-91](#) Security Prohibitions and Exclusions
- ☐ [52.240-91](#) Security Prohibitions and Exclusions, with Alternate I
- ☐ [52.240-92](#) Security Requirements
- ☐ [52.240-92](#) Security Requirements with Alternate II
- X [52.240-93](#) Basic Safeguarding of Covered Contractor Information Systems
- X [52.244-6](#) Subcontracts for Commercial Products and Commercial Services
- ☐ [52.247-64](#) Preference for Privately Owned U.S.-Flag Commercial Vessels
- ☐ [52.247-64](#) Preference for Privately Owned U.S.-Flag Commercial Vessels, with Alternate I
- ☐ [52.247-64](#) Preference for Privately Owned U.S.-Flag Commercial Vessels, with Alternate II

GSAM

- X [552.211-73](#) Marking (Feb 1996)
- X [552.211-77](#) Packing List (Feb 1996)

CLAUSES INCORPORATED BY FULL TEXT

GSAM 552.212-71 Contract Terms and Conditions Applicable to GSA Acquisitions of Commercial Products and Commercial Services (OCT 2023)

The Contractor agrees to comply with any clause that is incorporated herein by reference to implement agency policy applicable to acquisition of commercial products, including commercial components, and commercial services. The clause in effect based on the applicable regulation cited on the date the solicitation is issued applies unless otherwise stated herein. The Contracting Officer should check the clauses in paragraph (b) that apply or delete the clauses that do not apply from the list. The Contracting Officer may add the date of the clause if desired for clarity. The GSAR clauses in paragraph (b) of this section are incorporated by reference.

(b) *Clauses.*

552.229-70 Federal, State, and Local Taxes

(End of Clause)

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (NOV 2025) (GSA Class Deviation RFO-2025-12)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate

consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

- (1) Within a reasonable time after the defect was discovered or should have been discovered; and
- (2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

- (1) Notify the Contracting Officer in writing as soon as possible;
- (2) Remedy the delay as quickly as possible; and
- (3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment—

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor; unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)